

25VECV06518 25VECV06518

County: los-angeles

Division: Civil Law and Motion

Department: I

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Case Number: 25VECV06518 Hearing Date: September 22, 2026 Dept: I

25VECV06518 HERNAN HERNANDEZ V.

JAGUAR LAND ROVER NOTH AMERICA, LLC, et al.

September 22, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Compel Deposition of Plaintiff

I.

Background

This is a lemon law action arising out of Plaintiff Hernan Hernandez's ("Plaintiff") purchase of a 2022 Jaguar F-Pace, VIN No.: SADCZ2EE0NA698196 (the "Subject Vehicle") manufactured by Defendant Jaguar Land Rover North America, LLC ("JLRNA") and repaired by Defendant Galpin Jaguar Lincoln-Mercury Inc. dba Land Rover Van Nuys. On December 22, 2025, Plaintiff filed the operative Complaint against Jaguar Land Rover North America, LLC, Land Rover Van Nuys, and DOES 1 through 10 (collectively, "Defendants"), asserting causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; (3) Violation of the Song-Beverly Act Section 1793.2; and (4) Negligent Repair.

On February 23, 2026, Defendants filed their Answer to the Complaint.

On August 4, 2026, Defendant JLRNA

("Defendant") filed the instant Motion to Compel Deposition of Plaintiff. On September 9, 2026, Plaintiff filed an Opposition. On September 16, 2026, Defendant filed a Reply.

II. Discussion

On May 27, 2026, Defendant served a Notice of Deposition of Plaintiff and Request for Production of Documents for a deposition date of June 30, 2026. (Declaration of Rosario Stoliker ("Stoliker Decl."), ¶ 3; Ex. A.) Defendant's counsel states that after Plaintiff served an objection due to the date being unilaterally set, Defendant sent a meet and confer email on June 23, 2026. (Stoliker Decl., ¶¶ 4-5; Exs. B-C.) On July 8, 2026, Defendant sent a follow up email requesting alternative dates, but Plaintiff did not respond. (Stoliker Decl., ¶ 6; Ex. C.)

A motion to compel deposition "shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) Specifically, "[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).) "[A]ttempting informal resolution means more than the mere attempt by the discovery proponent 'to persuade the objector of the error of his ways' and 'a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing]counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

As shown above, the parties did not meet and confer in-person, by telephone, or by videoconference as required under Code of Civil Procedure Section 2025.450, subdivision (b). Though the email communications demonstrate that Defendant made an effort to meet and confer.

However, in his opposition, Plaintiff now requests that the deposition take place on October 29, 2026. (Declaration of Camilo Fernadnez, ¶ 7.) In its

reply, Defendant agrees to the October 29, 2026, deposition date. Because Plaintiff only provided his availability after the instant motion was filed, the Court grants the motion to compel the deposition of Plaintiff and orders Plaintiff to appear on October 29, 2026, for his deposition.

In its reply, Defendant requests a short continuance of the trial. Trial is set for July 7, 2027. Thus, the Court finds that a continuance is not warranted as trial is set for over nine months away.

III. Conclusion

Accordingly, the hearing on Defendant Jaguar Land Rover North America, LLC's Motion to Compel Deposition of Plaintiff is GRANTED. Plaintiff Hernan Hernandez is ordered to appear for deposition on October 29, 2026.

Defendant Jaguar
Land Rover North America, LLC to give notice.